

an opportunity to exercise his right to present comments in accordance with Art. 113(1) EPC 1973 (Art. 113(1) EPC). Hence, a letter from the applicant which neither exercised nor waived that right was not a reply for the purposes of Art. 96(3) EPC 1973 (Art. 94(4) EPC). In the case in hand, the examining division believed erroneously that the applicant, by making a simple procedural request, had forfeited his right to present comments during the remainder of the term set for reply. Thus the precipitate refusal, while there were still some two months of the term for reply unexpired, did contravene Art. 113(1) EPC.

2.5.3 Immediate refusal after communication

An examining division does not exceed its discretionary power by immediately refusing an application after only a single communication. However, the decision must comply with Art. 113(1) EPC, i.e. must be based on grounds on which the applicant has had an opportunity to present comments (see T 201/98 and T 1002/03; see also T 84/82, OJ 1983, 451 and T 300/89, OJ 1991, 480; see chapter IV.B.2.3. "Refusal after a single communication"). If the factual basis is not sufficiently given in the single communication so that the applicant has to speculate about the examining division's assessment and thus is not put in the position to properly defend its rights, the requirements of Art. 113(1) EPC are not met; coming to a final decision after such a single deficient communication results therefore in a substantial procedural violation (T 435/07).

In T 305/14 the board stated that only if a preceding communication pursuant to Art. 94(3) EPC sets out the essential legal and factual reasoning to support a finding that a requirement of the EPC has not been met, can a decision based on such a finding be issued without contravening Art. 113(1) EPC. In the case at hand, the board held that the decisive statement had been put forward in the communication in an abstract way only, without the necessary logical chain between the given statement and the particular technical facts of the case. Because the appellant learnt about the essential reasoning for the first time in the impugned decision, it did not have an opportunity to present its comments with respect to that reasoning.

2.5.4 Invitation to oral proceedings at short notice

In T 166/04 the board held that the late introduction of additional prior art documents together with an invitation to oral proceedings was not necessarily improper, even if they formed part of a critical argumentation. The board considered that the time frame of two and a half months for the applicant to respond was in conformity with R. 71(1) EPC 1973 (R. 115(1) EPC) and was not unduly short. Further, apart from the non-extendable time limit, the appellant had had an opportunity to respond to the summons in writing as if he had responded to a communication under Art. 96(2) EPC 1973 (Art. 94(3) EPC), which he had actually done by submitting amendments and further arguments. In addition, the board pointed out that the applicant had decided not to participate in the first-instance oral proceedings during the course of which he could have made further submissions.

2.6. The right to be heard in oral proceedings

The right to oral proceedings regulated by Art. 116(1) EPC forms a substantial part of the right to be heard granted by Art. 113(1) EPC (T 209/88, T 862/98, T 1050/09). The right to be heard in oral proceedings subsists so long as proceedings are pending before the EPO (T 598/88, T 556/95, T 114/09).

The right to present comments enshrined in Art. 113(1) EPC does not need to be exercised in writing but may be satisfied by way of oral proceedings (T 1237/07). This does not mean, however, that it is for the boards to ensure, of their own motion, that all points raised at some point in the proceedings are discussed at the oral proceedings. Rather, it is for the parties to address any point they consider relevant and fear may be overlooked and to insist, if necessary by way of a formal request, that it be discussed (R 17/11). This also applies in oral proceedings before the opposition division (T 7/12).

In T 2232/11 the board held that the mere announcement of a further submission based on additional documents, at the opening of the discussion on an invention's reproducibility, was insufficient to oblige the examining division to follow this announcement up ex officio later on in the oral proceedings. The applicant was therefore responsible for notifying the examining division, where necessary via a formal request, of its intention to make further submissions on the topic. Given the course of the proceedings, the applicant ought to have expected that the examining division might reach a final decision after interrupting the proceedings to deliberate.

Conversely, Art. 113(1) EPC cannot be interpreted in a way that a party's right to be heard is already satisfied if a party, having requested oral proceedings according to Art. 116 EPC, has had the opportunity to argue in writing. If this interpretation of Art. 113(1) EPC were to be followed, the parties' right to oral proceedings under Art. 116 EPC would be redundant, with the unacceptable consequence that an opposition division or a board of appeal would be entitled, with regard to a controversial issue discussed during written procedure, to give a decision right at the beginning of oral proceedings without hearing the parties (T 1077/06).

Non-compliance with a request for oral proceedings deprives the party of an important opportunity for presenting its case in the manner it wishes and using the possibilities open to him under the EPC. By virtue of its request for oral proceedings, the party can rely on such proceedings being appointed before an adverse decision is issued, and therefore has no reason to submit further arguments in writing (see T 209/88, T 1050/09; and also chapter III.C.2. "Right to oral proceedings").

Conducting oral proceedings effectively and efficiently, although subject to the discretionary power of the chairman, must nevertheless guarantee that the fundamental procedural rights of each party in adversarial proceedings, i.e. the right to fair and equal treatment, including the right to present comments in oral proceedings (Art. 113(1) and 116 EPC) are respected (T 1027/13; see also chapter IV.C.6.1. "Principle of equal treatment").

There is no infringement of the right to be heard where an examining division refuses to minute a party's submissions during oral proceedings (T.1055/05).

A party's right to be heard under Art. 113(1) EPC does not imply a separate right of the party's representative to be heard and therefore does not imply a right to have oral proceedings before the EPO held by video conference (T.2068/14; see also chapter III.C.7.3. "Oral proceedings held by video conference").

In T.1414/18 the board held that a statement such as "the next procedural step will be summons to oral proceedings during which the application will be refused" made prior to a final decision to refuse a patent application may infringe a party's right to be heard and thus may lead to a substantial procedural violation. The phrase "will be refused" – on an objective basis – Implied that, regardless of any facts or arguments the applicant could potentially have brought forward thenceforth, the application was finally to be refused under Art. 97(2) EPC. Such a conduct of the proceedings was contrary to the very aim and purpose of the right to be heard under Art. 113(1) EPC.

2.6.1 Introduction of a new claim or relevant document

In a case where an opposition division or a board of appeal feels bound by Art. 114(1) EPC to examine new facts or evidence submitted for the first time during oral proceedings, it must, in accordance with Art. 113(1) EPC, give the other parties the opportunity to comment before issuing a reasoned decision based on such facts or evidence (G 4/92, OJ 1994, 149; see also T.484/90, OJ 1993, 448; with regard to late submissions see T.330/88, T.356/94 and chapter IV.C.4. "Late submission of documents, lines of attack and arguments"). The same principle has also been applied to decisions of examining divisions (see e.g. T.376/98). The applicant does not have a right in principle to continuation in writing; the party's right to be heard under Art. 113(1) EPC is also observed if the applicant is given an adequate amount of time to study the document and present comments. How much time is sufficient depends on the nature of the newly introduced document and the preceding procedure (T.2434/09).

a) Cases in which Article 113(1) EPC was violated in relation to the introduction of new claims or relevant documents

In T.951/97 (OJ 1998, 440), although document D4 had been mentioned in the European search report, it had not been cited at any stage in the examination procedure prior to the oral proceedings. The board found that the half an hour adjournment of the oral proceedings had been too short a period for an adequate analysis of the complex text of D4. As D4 was essential to the finding of the examining division in relation to inventive step, the decision was based on evidence on which the applicants had not had a sufficient opportunity to present their comments as required by Art. 113(1) EPC (see also T.492/03).

In T.783/89 the opposition division had proposed a new version of the main claim at the start of the oral proceedings, giving the opponents ten minutes to consider it. The board ruled that this had taken the opponents by surprise, and that the time given had not been sufficient to study the allowability of the amendments.

In T 2235/12 the examining division had introduced, two days before the oral proceedings, two additional documents and a new objection into the procedure. The appellant's request for a postponement of the oral proceedings was rejected, and the appellant did not attend the oral proceedings. The board held that the new objection was not related to the points indicated in the summons and that the appellant should have been given an adequate opportunity to react to the new objection. Attending the oral proceedings would not have changed the fact that the timeframe was too short for the representative to get instructions from the client and to prepare for oral proceedings with a new focus. The board concluded that rejecting the appellant's request for a postponement of the oral proceedings infringed the appellant's right to be heard.

In T 75/10 the board saw no reason to overturn the opposition division's admission of late-filed documents that appeared highly relevant for novelty. These had been generated from an archive different from the databases commonly used for a prior-art search. The board considered that the opposition division should have granted the patentee's request for postponement of the oral proceedings, after deciding to admit these. The board stated that there was an essential difference between a prima facie assessment of the possible relevance and publication date of a late-filed document for deciding upon its admission into the proceedings and the full in-depth assessment of novelty vis-à-vis such a document, which required determining whether the document was made available to the public before the effective filing date.

In T 763/15 the board could not see any indication that the appellant had been allowed to argue during the oral proceedings on the issue of admissibility of auxiliary request 2. In the opposition proceedings the chairman, after commenting on the amendment made to claim 1 of auxiliary request 2, immediately announced "that AUX2 is not admitted in the proceedings". A decision taken and pronounced by the opposition division cannot be challenged any more in the same proceedings. Therefore, the board considered it to be irrelevant that "The Patentee did not react on this decision not to admit AUX2 in the proceedings", as recited in the minutes.

In T 1238/14, the appellant had filed auxiliary requests 1 and 2 in response to the examining division's summons to oral proceedings, but the division – without holding the oral proceedings – had then decided to refuse the claims according to those auxiliary requests too as not patentable. The defects in those claims had not been communicated to the appellant in advance for comment. Instead, it had first – and only – learned of them on receiving the decision to refuse the application on the basis of both the main request and the two auxiliary requests. The board held that, where an applicant had been summoned to oral proceedings, it was entitled to assume that they would actually take place and that it would be given an opportunity there to respond to any objections raised by the examining division.

In T 482/16 the board concluded that, by rejecting the appellant's request for postponement of the oral proceedings, the examining division had not provided the appellant with the appropriate opportunity to present its comments on documents the examining division had introduced for the first time during the oral proceedings.

- b) Cases in which Article 113(1) EPC was not violated even though new claims or relevant documents were introduced

In T 484/89 the board held that the opposition division was empowered under Art. 114(1) EPC to take account of and refer to all relevant documents cited. In the case in question the opposition division had considered it necessary to refer to a document during the oral proceedings. In such cases the parties should, at their request, be granted an adjournment or else new oral proceedings should be appointed. Since no such request was made, according to the decision and the record of the oral proceedings, Art. 113(1) EPC had not been breached.

In T 608/08 the board considered that, in principle, when the patent proprietor submits new claims during oral proceedings, an opponent must be afforded an opportunity to familiarise itself with the new situation, which must at least involve a sufficiently long interruption of the oral proceedings. However, that applied only to requests incorporating new content. In the case at issue, the new auxiliary requests consisted of a combination of features from sub-claims belonging to the main request. The technical features of the sub-claims were straightforward and did not put the subject-matter of the main request in a new and more complex technical context. Consequently, the admission of the auxiliary request did not entail a surprisingly new procedural situation requiring the opposition division to interrupt the oral proceedings (in contrast to T 783/89, in which a completely reformulated text of the claim introduced a new feature; see above).

In T 1031/12 the appellant claimed that a new document had unexpectedly been mentioned for the first time at the end of the oral proceedings before the examining division, without its being given an opportunity to present counter-arguments. The board noted that the representative had been afforded the time he himself had identified as necessary for a reply. Therefore he had had not only the opportunity but also sufficient time to comment.

In T 376/98 the examining division had referred to document D4 for the first time during the oral proceedings, and had stayed the oral proceedings to give the applicant time for consideration. When the oral proceedings were resumed, the appellant requested a decision based on the documents on file. Regarding the introduction of D4 at the oral proceedings, the board noted that no procedural limitations were placed upon the examining division to cite relevant documents during any stage of the examination procedure, as long as the applicant was given a fair chance to comment on the objections raised before a final decision was taken (see T 1198/97). In the board's opinion, the appellant's request for a decision could only be taken to mean that the appellant was not interested in a further debate about the relevance of D4.

In T 566/91 the opposition division based its decision to revoke the patent on a version of a citation which was more complete than the version which had been cited by the opponents when filing the opposition. The decision of the department of first instance was thus based, albeit inadvertently, on evidence on which the parties had not had the opportunity to comment. In order to comply with Art. 113 EPC in the appeal proceedings,